The Broken Promise of 2006: How the State Betrayed Nepal's Conflict Victims

On November 21, 2006, Prime Minister Girija Prasad Koirala and Maoist Chairman Pushpa Kamal Dahal signed the Comprehensive Peace Agreement. The political class declared victory. Flashing cameras, roaring applause, and diplomatic cables announced the end of a ten year bloodbath that stole over seventeen thousand lives, displaced entire villages, and mutilated thousands of civilians. Kathmandu rejoiced as the combatants traded rifles for ballot papers.

Yet outside the capital, through the terraced hills of the midwestern districts and the plains of the Terai, families watched the spectacle with quiet disbelief. To political elites, peace meant dividing parliamentary seats, demobilizing the People's Liberation Army, and drafting an interim constitution. To mothers whose sons disappeared into dark detention centers, to widows fighting off social shame, and to children who lost limbs to roadside explosives, the state offered nothing but silence. The peace deal ended the battlefield war between two armed factions, but it inaugurated an era of institutional denial that erased the everyday survivors who paid the real price.

Clause 5.2.5 of the peace accord promised to publish the names and whereabouts of all disappeared citizens within sixty days. That pledge proved to be an outright lie. It took eight years of intense public outrage and Supreme Court mandates just to pass the legal framework for the Truth and Reconciliation Commission and the Commission on Investigation of Disappeared Persons. By the time commissioners took their seats in 2015, the political masters had neutered the bodies before they even began work.

Both the state security apparatus and the former insurgents realized they held a shared goal. Neither army generals nor guerrilla commanders wanted their lieutenants standing before a criminal judge. Whenever a new governing coalition took power in Singha Durbar, the leadership sacked commissioners, starved the offices of financial resources, or installed party loyalists.

Survivors filed over sixty thousand complaints at the Truth and Reconciliation Commission and more than three thousand at the Disappearance Commission. Villagers pooled their meager savings, took buses over washed-out mountain tracks, and delivered handwritten accounts of nighttime kidnappings, extrajudicial executions, and torture. The political elite treated these thick folders as bargaining chips. Leaders dusted off the files only when they needed leverage against rival parties during cabinet talks, leaving the demands of the victims completely abandoned.

Successive governments tried to replace accountability with petty cash. Officials praised themselves for distributing one hundred thousand rupees, and eventually one million rupees, to select families of the deceased.

This financial distribution model insults the dignity of survivors for three clear reasons:

First, the state uses financial relief as hush money. Bureaucrats treat the payout as a transaction that silences future legal claims. They expect a mother to sign away her right to know where the police buried her son simply because the district office handed her a check.

Second, the system abandons the living wounded. While a death certificate generates an administrative trail, surviving with shattered bones or shrapnel lodged beside your spinal cord leaves you stranded. Victims spend ten times the state allowance on endless bus rides to capital hospitals, surgeries, and recurring prescriptions that the district clinics do not stock.

Third, money does not reform institutions. Real restorative justice requires the government to purge torturers from the police and army ranks, reform the penal code, build public memorials, and teach the honest history of the war in public schools. Instead, prime ministers promoted officers accused of war crimes and rewarded insurgent leaders with ministerial convoys.

The armed conflict fell heavily on women, yet the state continues to ignore their trauma. Both security personnel during search operations and insurgents in contested mountain redoubts used sexual violence as a systematic weapon of domination. Archaic statutes of limitation, combined with conservative village stigma, silenced thousands of survivors.

Widows faced double isolation. In laws seized their ancestral lands, while local communities labeled them carriers of bad fortune. Mothers who lost husbands became sole breadwinners overnight, pulling daughters out of school to break stones along riverbanks or work in urban brick kilns. When an explosion tore off a mother’s leg, her entire household plunged into generational destitution. International aid agencies visited these villages, recorded their pain for glossy annual reports, and vanished back to capital hotels without leaving behind a single sustainable medical clinic or legal advocacy center.

True peace requires far more than the absence of active gunfire. A society cannot build a healthy democracy upon the unmarked graves of its citizens and the unaddressed wounds of its children. By choosing political expediency over truth, Nepal’s leaders turned the peace agreement into a document of collective amnesia.

The survivors refuse to accept this manufactured silence. Victims organized their own federations, picketed government gates, challenged flawed legislation in the Supreme Court, and preserved their living memories against every political attempt to rewrite history. The state must stop treating these citizens as passive beggars who want charity. The republic owes its survivors criminal prosecutions, honest answers, lifelong specialized healthcare, and genuine structural reform. Until the state delivers these baseline demands, the peace accord remains an unfulfilled promise written on cheap paper.